TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
NOVEMBER 20, 2017
MINUTES

Present: Mason Smith, Chair, Barry Wolff, Joseph Belton, Bobby Carrier, Stephen Wood, Stephen Duke, Glyn Cowden.
Staff: Michael Robertson, Lynnette Lynes

Mr. Smith called the meeting to order at 6:00 pm and reviewed the procedures with the public. He administered the oath to those speaking.

1. Approval of Minutes

This item was deferred.

2. Public Comment and General Correspondence

There being no comments, Mr. Smith continued with the agenda.

3. Business

A. V-33-17, 405 Coleman Blvd., TMS 517-06-00-079, Request for relief from the strict standards of §156.171 schedule of off-street parking space requirements to allow continued use of property in manner shown on site plan.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Kevin Berry, Earthsource Engineering, reviewed the request with the Board.

Mr. Michael Harper, owner of 409 Coleman Blvd, expressed concern that the variance is being requested instead of the property being brought into compliance. He suggested that the proposed use is a restaurant and not a retail use. He expressed concern that his property would be affected if the variance is granted. He suggested that the request does not meet the criteria for granting a variance.

Ms. Jennifer Garner, realtor for proposed owner, stated that the owner prefers a small space for the cookie sales. She suggested that the opposition from the adjacent property owner is due to wanting to purchase the property instead of the property being sold otherwise. She distributed a copy of the email correspondence and pictures of the proposed store for the Board to review.

Mr. Harris Cullen, owner of King Street Cookies, stated that his company should be considered a retail use.

Mr. Wood asked if there is seating located in the building. Mr. Cullen answered in the affirmative and stated that there are a few tables that would be located in the store.

Mr. Carrier asked if the same product would be served as with the downtown store. Mr. Cullen answered in the affirmative.

Ms. Cynthia Campbell and Mr. Bruce Campbell, owners of Campbell Jewelers, stated that they have enjoyed a long-time business in the Town. Mr. Campbell suggested that the new business would be similar to their business. Ms. Campbell stated that they are ready to retire and they should be able to sell their building to the new owner. She stated that the traffic for the cookie store would not be long-staying customers. She stated that they have been good business owners for the Town and suggested that this should be able to continue with the new owner.

Mr. Robertson read correspondence for the record.

There being no further comments, Mr. Smith closed public comments.

Mr. Wood asked if there was no indoor seating, would the use then be considered a retail use. Mr. Robertson answered in the negative and reviewed the definition for the Board. Mr. Wood asked if a candy store would be considered a retail use. Mr. Robertson answered that this could be a possibility.

Mr. Cowden asked if the existing parking meets the parking requirements. Mr. Robertson answered in the negative.

Mr. Smith noted that this is a variance request and not an appeal against the Zoning Administrator's decision.

Mr. Duke asked how many parking spaces are required. Mr. Robertson answered that based on the square footage, they would be required to have eight spaces. If considered a retail use, then four spaces would be required.

Mr. Carrier suggested that there are not extraordinary conditions. He questioned if the parking issue would be considered an extraordinary condition. Mr. Robertson noted that if this was a new retail use, a variance would be needed because the use would not meet the parking requirements.

Mr. Wolff moved for approval of the request based on the application and staff report, based on the findings that this is an extraordinary piece of property with a well-established business. Mr. Cowden seconded the motion. All in favor.

B. V-34-17, 1432 Scotts Creek, TMS 5600900303, Request for relief from the strict standards of §156.111 to allow approval of two (2) feet, four (4) inch encroachment of accessory structure into accessory use setback.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. John Linton, representative for applicant, reviewed the request with the Board. He distributed photos and reviewed these with the Board. He suggested that this was a construction error and that the request meets all criteria for a variance. He stated that the Scotts Creek ARC has approved the placement of the pool house.

Mr. Duke asked when the error was discovered. Mr. Linton answered that the application was submitted as soon as the error was discovered.

Mr. Wolff asked when the structure was completed. Mr. Linton answered that the permit was issued in 2017.

Mr. Stephen Medlock, owner, stated the error was discovered just prior to the issuance of a certificate of occupancy (CO). He suggested that if not approved, the structure would need to be demolished. He suggested that demolition does not make sense for such a small error. He asked that the variance be approved.

Mr. Wolff asked if there is electrical and plumbing in the structure. Mr. Medlock answered in the affirmative.

There being no comments, Mr. Smith closed public comment.

Mr. Wolff suggested that demolition would not be prudent and asked how many inspections would have taken place. Mr. Robertson answered that he was not sure

the number of inspections that would be involved with the construction, but noted that the inspectors are not verifying setbacks during those inspections.

Mr. Smith stated that the builder is responsible for ensuring the structure is built to the correct measurements and requirements. He suggested that the decision cannot be based on financial hardship, but whether the criteria is met.

Mr. Carrier suggested that it is a self-inflicted hardship.

Mr. Robertson noted that he met with the applicant prior to the meeting and that the ordinance states that the setbacks must be met as well as 15 feet from an adjacent structure. He stated that there was a question if the intent was to be six feet from the property line and 15 feet from the adjacent structure merely for protection of the adjacent structures.

Mr. Smith agreed and stated that there have been issues with separation and that the setback could be intended to provide building separation.

Mr. Cowden asked about the ARC's approval of the pool house and if this can be a consideration. Mr. Robertson answered that the criteria must be met in order to approve a variance.

Mr. Smith suggested that approval of the variance would not be a detriment as it abuts a drainage easement.

Mr. Carrier suggested that all of the criteria has not been met, particularly with extraordinary circumstances, prohibiting utilization of property, and pertaining to other property.

Motion: *Mr. Carrier moved for denial of the request based on the findings that they do not meet the criteria of having an extraordinary based that not extraordinary condition, it would pertain to other property and denial would not prohibit use of the property. Mr. Duke seconded the motion.*

Mr. Cowden suggested that the property does meet the criteria and read a portion of the application for the Board. He stated that the property is near a drainage

easement and HOA space, so there would be no detriment to the surrounding property or neighborhood. He stated that the ARC has no issue with the request.

Mr. Smith called for a vote on the motion. Motion failed on a 3 to 4 vote with Mr. Carrier, Mr. Duke, and Mr. Wood in favor; Mr. Wolff, Mr. Cowden, Mr. Belton, and Mr. Smith opposed.

Mr. Cowden moved for approval based on the findings that the structure is complete and would need to be demolished, the structure is near a drainage easement and HOA open space and would not be a detriment, there was a recent change in the setback requirements after the structure was completed, and no negative impact to the neighbor on the left. Mr. Wolff seconded the motion.

Mr. Wood asked about the six foot setback requirement and if it was in place when the building permit was issued. Mr. Smith answered in the affirmative. Mr. Wood suggested that this should not be included in the findings of fact. Mr. Smith suggested that the motion could be amended if desired.

Mr. Cowden moved to amend the motion to strike the finding "there was a recent change in the setback requirements after the structure was completed". Mr. Wolff seconded the amendment. All in favor.

Mr. Smith called for a vote on the amended motion. Motion passed on a 4 to 3 with Mr. Wolff, Mr. Cowden, Mr. Belton, and Mr. Smith in favor; Mr. Carrier, Mr. Duke, and Mr. Wood opposed.

C. V-35-17, 428 Morrison Street, TMS 5320100214, Request for relief from the strict standards of §156.111 (A)(1) to allow three (three) foot rear yard setback for accessory structure

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Terence Bowers, owner, reviewed the request with the Board.

Mr. Wolff asked the elevation of the property and why a retaining wall was needed. Mr. Bowers answered that it was approximately a five foot difference in grade.

There being no comments, Mr. Smith closed public comment.

Mr. Wood asked if vertical construction had started, would the construction been able to continue. Mr. Robertson answered in the negative and stated that the expired permit would not have been able to be reinstated because the ordinances have been amended that would prevent the permit from being issued. Mr. Wood asked how long a permit is valid. Mr. Robertson answered that it should be the same timeframe as for a vested right, or two years.

Mr. Wolff asked why the permit was allowed to be extended. Mr. Robertson answered that the extensions were allowed as this was requested before the regulation change. He stated that because of the ordinance change, the permit can longer be extended without approval of a variance.

 *Mr. Wolff moved for approval based on the findings in the staff report. Mr. Cowden seconded the motion. All in favor.*

4. Approval of Final Orders

This item was deferred.

There being no further business, the meeting adjourned at 7:33 pm.

Submitted by,
L. Lynes
BOZA11202017